

(8) Constructive Fraud

Defendant's Demurrer to Plaintiff's constructive fraud cause of action is also on the grounds that it lacks specificity. And, for the same reasons as discussed above with respect to Plaintiff's false promise cause of action, the Court disagrees. The Demurrer on this ground is **overruled**.

5. 9:00 AM CASE NUMBER: C23-02994

CASE NAME: NICOLETTE GRANZELLA VS. STEVEN SACKS

HEARING IN RE: JOINDER TO DEFENDANT PRIME SMOKED MEATS, INC.'S DEMURRER TO FIRST AMENDED COMPLAINT

FILED BY: SACKS, STEVEN M

TENTATIVE RULING:

Before the Court is Defendant Steven M. Sacks, aka Steven Sacks, aka Steve M. Sacks, aka Steve Sacks ("Defendant" or "Sacks") joinder to the Demurrer of Defendant Prime Smoked Meats, Inc.

Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. (*Barak v. Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661.) If the joinder itself is not in the form of a motion, does not present any evidence or argument, that joinder does not alone constitute a motion that will entitle a party to relief or cause the party to be bound by the ruling of the court on the pending motion made by another party. (*Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382, 1392 [superseded by statute on other grounds].)

Here, Defendant both seeks affirmative relief on his own behalf and joins in the arguments made by Defendant Prime Smoked Meats. However, because Defendant Prime Smoked Meats' Demurrer is **overruled**, the joinder to that motion is **denied** as moot.

6. 9:00 AM CASE NUMBER: C24-01742

CASE NAME: 1716 NORTH MAIN STREET, LLC VS. HEFFERNAN INSURANCE BROKERS

*HEARING ON MOTION IN RE: STRIKE PLTFS CLAIM FOR PUNITIVE DAMAGES IN 1ST AMENDED COMPLAINT

FILED BY: HEFFERNAN INSURANCE BROKERS

TENTATIVE RULING:

Before the Court is Defendant Heffernan Insurance Brokers' Motion to Strike Plaintiff's Claim for Punitive Damages in the First Amended Complaint.

Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") §435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782